

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV430182	<i>Deborah Sharpe v. Brian Joseph Chesky et al.</i>	Click on LINE 1 or scroll down for ruling.
9:00 2	24CV450818	<i>Cavalry SPV I, LLC v. Jose Moreno</i>	Motion for judgment on the pleadings: notice is proper, and the motion is unopposed. The court has reviewed defendant's answer and agrees with plaintiff that it does not set forth a valid defense to the breach of contract cause of action. In fact, defendant's answer admits the allegations of the complaint. The motion is GRANTED. Moving party to prepare formal order.
9:00 3	25CV463924	<i>Maria O. Baltier et al. v. General Motors, LLC</i>	Click on LINE 3 or scroll down for ruling.
9:00 4	25CV469564	<i>Daniel Sievers v. Hyundai Motor America</i>	OFF CALENDAR
9:00 5	25CV457836	<i>Chao Xu v. Booking.com (USA) Inc. et al.</i>	OFF CALENDAR
9:00 6	25CV468257	<i>Argent Investments LLC v. Ye Rang Choi</i>	Click on LINE 6 or scroll down for ruling.

Line 1

Case Name: *Deborah Sharpe v. Brian Joseph Chesky et al.*

Case No.: 24CV430182

This is a petition to vacate an arbitration award, filed by petitioner Deborah Sharpe against respondent Airbnb, Inc. (“Airbnb”). Airbnb argues that the petition is untimely under both the Federal Arbitration Act (“FAA”) and the California Arbitration Act (“CAA”), because Sharpe filed it on April 8, 2026, which was 138 days after the November 21, 2025 award was served on her (or 128 days after the December 1, 2025 corrected award was served). The statutory deadline under the FAA is “three months.” (9 U.S.C. § 12.) The deadline under the CAA is “100 days.” (Code Civ. Proc., § 1288.)

The court agrees with Airbnb that the petition is untimely under both the FAA and the CAA, and so it does not need to resolve the parties’ dispute as to which statute applies. In addition, the court does not need to address the parties’ remaining arguments on the merits. Nevertheless, the court will note that even though Sharpe asserts that the arbitrators exceeded their authority, improperly excluded evidence, were fundamentally unfair, and violated public policy, she fails to identify anything in the record to support these conclusory assertions. Instead, based on what she identifies in the record, her basic complaint appears to be that the arbitrators failed to apply the law correctly, but that is not a basis for vacating an arbitration award.

The petition is DENIED as untimely.